

## 24NWCV03203 24NWCV03203

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Case Number: 24NWCV03203 Hearing Date: September 24, 2026 Dept: L

Plaintiff Tawanda Michelle Honors' Motion for Order Allocating Wrongful Death Settlement Among Heirs is GRANTED.

Plaintiff to give notice.

### Background

This is an action for medical malpractice. On September 13, 2026, Plaintiffs Earl Williams, III, and Tawanda Michelle Honors filed this action against Defendants Lakewood Regional Medical Center, Inc., Tenet Healthsystem Medical, Inc., Megan Storm, M.D., Michael Secrist, M.D., Los Alamitos Radiology Group, CEP America-California (erroneously sued as California Emergency Physicians Medical Group), and Does 1 to 250. The gravamen of the Complaint is the following: "While [under the care of Defendants], [Plaintiff Earl Williams, III] suffered from a spinal infection that progressed and extended into an epidural abscess causing [Plaintiff] to suffer from quadriplegia." (Compl., ¶ 8.) The Complaint alleges two causes of action for 1) Negligence, and 2) Loss of Consortium.

Defendants Tenet Healthsystem Medical, Inc. and Los Alamitos Radiology Group have then since been dismissed without prejudice.

On March 18, 2025, the Court found this case was related to Tawanda Michelle Honors, et al. vs Lakewood Regional Medical Center, Inc., et al., LSAC Case No. 25NWCV00536 (hereinafter, "Wrongful Death Action"). On February 11, 2025, Plaintiffs Tawanda Michelle Honors and Shialyn Williams filed the Wrongful Death Action against Defendants Lakewood Regional Medical Center, Inc., Megan Storm, M.D., Michael Secrist, M.D., CEP America-California, Golden State Imaging Associates Inc., and Does 1 to 250, and nominal Defendants Kerrya Williams, Austin Williams, Tyler Williams, Javon Swint, Lexus Williams, and Shialyn Williams. The Complaint alleges one cause of action for wrongful death.

On March 19, 2025, pursuant to stipulation of the parties, Plaintiff Tawanda Michelle Honors was substituted in as successor-in-interest for Plaintiff Earl Williams, III, who passed away on November 25, 2024.

On December 12, 2025, pursuant to stipulation of the parties, the instant case was consolidated with the Wrongful Death Action.

On March 12, 2026, nominal defendant Shialyn Williams was dismissed without prejudice.

On June 1, 2026, the Court granted Defendant Lakewood Regional Medical Center, Inc.'s Application for Determination of Good Faith Settlement in the Wrongful Death Action. On the same day, the Court granted Defendants Megan Storm, M.D. and CEP America-California's Application for Determination of Good Faith Settlement.

Plaintiff Tawanda Michelle Honors now moves for an order allocating wrongful death settlement in the amount of \$800,000.00 among heirs.

## Legal Standard

Wrongful death actions are statutory in nature and governed by Code of Civil Procedure section 377.60. These actions compensate heirs of a decedent for losses suffered as a result of the decedent's death. (San Diego Gas & Electric Co. v. Superior Court (2007) 146 Cal.App.4th 1545, 1550-1551.) Wrongful death actions may be asserted by any of a decedent's personal representatives, including a surviving spouse and children, among others. (Code Civ. Proc., § 377.60, subd. (a).) Although each heir has a separate wrongful death claim, wrongful death must be tried jointly in order to prevent a series of suits against the tortfeasor. (LAOSD Asbestos Cases (2018) 28 Cal.App.5th 862, 872.)

The court shall determine the respective rights in a wrongful death award of all persons entitled to assert the cause of action. (Code Civ. Proc., § 377.61.) Such authority also extends to lump sum settlement awards. (See Corder v. Corder ("Corder") (2007) 41 Cal.4th 644, 653 ["After a jury trial, the trial court must apportion an award among the heirs based on the pecuniary damages suffered by each heir. Similarly, after a settlement, the trial court must apportion the settlement proceeds based on the identical criteria—the pecuniary damages suffered by each heir."]; see also Kim v. Yi (2006) 139 Cal.App.4th 543, 547 ["A wrongful death defendant can settle the case, with either all of the heirs or less than all of them. When the claims ... are encompassed in a lump-sum settlement, the court has authority to apportion the settlement."], internal quotations and citations omitted, emphasis in the original.) When a wrongful death action results in a lump sum recovery, the total recovery is the "aggregate of the pecuniary loss of each of the heirs entitled to recover by reason of the death of the deceased—the damages of each are added to produce the total. [Citations.] And if an heir has not suffered pecuniary damage he cannot recover." (Changaris v. Marvel (1964) 231 Cal.App.2d 308, 312, abrogated on other grounds by Corder, supra, 41 Cal.4th 644)

Damages for wrongful death are measured by the financial benefits the heirs received at the time of the decedent's death, the benefits reasonably expected in the future, and the monetary equivalent of the loss of comfort, society, and protection. (See Corder, supra, 41 Cal.4th at p. 661.) Damages in wrongful death actions may not include damages recoverable on the decedent's causes of action under Code of Civil Procedure section 377.34 [regarding survival actions]. (Code Civ. Proc., § 377.61.) Evidence of the nature of the personal relationship that existed between the decedent and the beneficiaries of a wrongful death action has bearing on whether the beneficiary may recover compensation for loss of society, comfort, and protection. (See Benwell v. Dean (1967) 249 Cal.App.2d 345, 349.) Damages for emotional distress, such as grief, sorrow, sad emotions, or injured feelings are not compensable in wrongful death actions. (See Nelson v. County of Los Angeles (2003) 113 Cal.App.4th 783, 794.)

## Discussion

Plaintiff Tawanda Michelle Honors now moves the Court to allocate the lump sum wrongful death settlement among Earl Williams, III's heirs. Plaintiff Honors explains that she and Plaintiff Shialyn Williams, a minor, settled with two of three Defendants in the amount of \$800,000.00. The attorney's fee in this matter is 33 percent of the gross recovery, or \$266,666.66, pursuant to the Medical Injury Compensation Reform Act (MICRA). (Bounds Decl., ¶ 15.) Plaintiff's counsel also incurred \$74,347.35 in costs. (Bounds Decl., ¶ 8.) Plaintiffs note that, "100% of the settlement is being allocated to the wrongful death claim[,] and the survival claims as to the settling defendants are being dismissed." (Mot., 2:12-20.) Thus, there is no medical lien. The total wrongful death settlement amount available for allocation is \$458,985.99.

Plaintiff Honors argues that the right to share in a wrongful death settlement is based on each heir's personal damages, not by the heir's intestate percentage. Losses include "financial support, expected future benefits, and the monetary equivalent of lost love, companionship, comfort, care, assistance, protection, affection, society, and moral support." (Mot., 3:12-14.)

Plaintiff Honors notes that all non-consenting heirs were joined as nominal defendants pursuant to the requirement that all heirs be joined in a single wrongful death action.

The requested allocation amounts are as follows:

Tawanda Michelle Honors: \$280,000.00

Shialyn Williams: \$100,628.12

Kyarra Williams: Despite attempts to agree no response.

Austin Williams: Has agreed to accept \$5,000.00 as his allocation

Tyler Williams: Despite attempts to agree, no response.

Javon Swint: Despite attempts to agree, no response.

Lexus Williams: Despite attempts to agree, no response.

(Mot., 4:11-18.)

Plaintiff Honors cites to her own declaration to support the requested allocation. Plaintiff Honors declares that she is the wife of decedent Earl Williams, III and they had one child together, Plaintiff Shialyn Williams. (Honors Decl., ¶¶ 2, 4.) Plaintiff Honors and her daughter had a close relationship with the decedent before he passed. Plaintiff Honors and the decedent continuously lived together since they were married in 2006 and maintained a “wonderful relationship.” (Honors Decl., ¶ 5, 18.) Plaintiff Shialyn Williams was born in 2009. (Honors Decl., ¶ 17.) The decedent supported Plaintiff Honors and Shialyn during his lifetime and was an “excellent father.” (Honors Decl., ¶ 19.)

During their marriage, the decedent had little to no relationship with nominal defendants Kerrya Williams, Austin Williams, Tyler Williams, Javon Swint, and Lexus Williams. (Honors Decl., ¶¶ 6, 13 23.) His parental rights over Kerrya Williams, Austin Williams, and Tyler Williams were revoked by the mother of his children, and he did not provide child support. (Honors Decl., ¶¶ 7,10.) The decedent has had no contact with Javon Swint since 2006. (Honors Decl., ¶ 11.) Lexus Williams briefly resided with the decedent when he lived in Louisiana around 2013 or 2014 for work. (Honors Decl., ¶ 14.) However, Lexus Williams was arrested and jailed for theft of the decedent’s possessions, and since then, they have had no contact. (Honors Decl., ¶ 14.) None of his children, except Lexus Williams, ever lived with or visited the decedent while Plaintiff Honors was married to him. (Honors Decl., ¶¶ 9, 16.) Despite being aware of the decedent’s illness and death, his children did not contact the decedent or attend his funeral. (Honors Decl., ¶¶ 20-22.) None of the nominal defendants were named as beneficiaries to any policy of the decedent’s insurance or benefits. (Honors Decl., ¶ 8.)

No oppositions have been filed.

The Court finds that the proposed allocation total for all heirs does not equal the total amount available for allocation of \$458,985.99. Further, the proposed order states that the total available amount for allocation is \$405,628.12.

Nevertheless, the Court exercises its discretion to award the following allocation, based on the evidence presented:

Tawanda Michelle Honors: \$344,239.49

Shialyn Williams: \$114,746.49

Kyarra Williams: \$0

Austin Williams: \$0

Tyler Williams: \$0

Javon Swint: \$0

Lexus Williams: \$0

The Court finds that Plaintiff Honors and Plaintiff Shialyn Williams shall receive 75 percent and 25 percent of the amount available for allocation, respectively. The nominal defendants shall not receive anything, as the evidence and their lack of response demonstrate that they did not have a relationship with the decedent and did not suffer any pecuniary loss. (See Changaris, supra, 231 Cal.App.2d at p. 312 ["[I]f an heir has not suffered pecuniary damage he cannot recover."].)

Accordingly, Plaintiff Honors' Motion for Order Allocating Wrongful Death Settlement Among Heirs is granted.

Plaintiff Honors is to file a modified order reflecting the Court's allocation.